

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shakina Griffith	Team: Team # 1	CCRB Case #: 201308284	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/06/2013 1:05 AM	Location of Incident: West 183rd Street and University Avenue	Precinct: 52	18 Mo. SOL 3/6/2015	EO SOL 3/6/2015	
Date/Time CV Reported Fri, 09/06/2013 12:26 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 09/06/2013 12:26 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Mendez	07126	953101	PBBX
2. POF Benedice Ramos	23387	953295	PBBX
3. POM Gustavo Ochoa	12454	953189	PBBX
4. POM Edward Gaston	04616	952767	PBBX
5. An officer			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Adonis Ramirez	05003	932205	PBBX
2. POM Karim Powell	15735	953270	PBBX
3. POM Tarek Khamis	05345	952927	PBBX
4. POM Christophe Knitter	29291	952941	PBBX
5. POM Edwin Peguero	24835	953225	PBBX
6. POM James Conn	11219	952610	PBBX
7. POM John Galbo	04486	951751	PBBX
8. POM Hashem Awad	11054	952434	PBBX
9. POM Joseph Spina	15556	953436	PBBX
10. POM Roger Kelly	13106	952924	PBBX
11. POM Fredery Alvarez	04723	951500	PBBX

Officer(s)	Allegation	Investigator Recommendation
A.POM Michael Mendez	Discourtesy: PO Michael Mendez spoke discourteously to § 87(2)(b)	
B.POM Gustavo Ochoa	Abuse: PO Gustavo Ochoa searched the car in which § 87(2)(b) was an occupant.	
C. An officer	Abuse: An officer searched the car in which § 87(2)(b) was an occupant.	
D.POM Edward Gaston	Abuse: PO Edward Gaston frisked § 87(2)(b)	
E.POM Michael Mendez	Abuse: PO Michael Mendez issued summonses to § 87(2)(b)	
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 6, 2013, § 87(2)(b) filed this complaint via phone with the Civilian Complaint Review Board (CCRB) (encl. 7a-b). On September 6, 2013, at approximately 1:05 a.m., § 87(2)(b) was pulled over at West 183rd Street and University Avenue in the Bronx by PO Michael Mendez of Patrol Borough Bronx. The following allegations resulted:

Allegation A- Discourtesy: PO Michael Mendez spoke discourteously to § 87(2)(b)

Allegation D- Abuse of Authority: PO Edward Gaston frisked § 87(2)(b)

§ 87(2)(g)

Allegation B- Abuse of Authority: PO Gustavo Ochoa searched the car in which § 87(2)(b)

was an occupant.

§ 87(2)(g)

Allegation C- Abuse of Authority: An officer searched the car in which § 87(2)(b)

was an occupant.

§ 87(2)(g)

Allegation E – Abuse of Authority: PO Michael Mendez issued summonses to § 87(2)(b)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

On September 19, 2013, mediation was offered and § 87(2)(b) accepted. However, on September 30, 2013, § 87(2)(b) chose to have his complaint investigated.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) year old black male who is 5'6", weighs 172 pounds, and has black hair and brown eyes.
- § 87(2)(b)

CCRB Statement

In addition to his original complaint, § 87(2)(b) provided a phone statement on September 19, 2013 (encl. 8a) and he was interviewed at the CCRB on September 30, 2013 (encl. 9a-h). ■

§ 87(2)(g)

On September 6, 2013, § 87(2)(b) was traveling in the vicinity of Fordham Road and University Avenue when a marked police vehicle pulled him over. Two officers exited the patrol car. PO Michael Mendez of Patrol Borough Bronx, identified via investigation, and described as a fair-skinned twenty-eight year old Hispanic male, 5'6" to 5'7", approached § 87(2)(b) on the driver's side. PO Benedice Ramos of Patrol Borough Bronx, described as a Hispanic female approached § 87(2)(b) on the passenger's side. § 87(2)(b) gave PO Mendez his license and registration. PO Mendez told § 87(2)(b) that his license plate light was out. § 87(2)(b) thought PO Mendez had said that his tail light was out. PO Mendez told § 87(2)(b) to get the light fixed and returned § 87(2)(b)'s documents.

§ 87(2)(b) exited his vehicle to see what PO Mendez was referring to and stood at the driver's door. When PO Mendez was at the rear of § 87(2)(b)'s vehicle, he turned around. PO Mendez and § 87(2)(b) stood three to four feet away from one another. PO Mendez asked § 87(2)(b) what he was doing and instructed him to "back up." § 87(2)(b) said he wanted to see what PO Mendez was referring to. PO Mendez said that § 87(2)(b) needed to re-enter his vehicle. § 87(2)(b) repeated that he wanted to see what PO Mendez was referring to. PO Mendez said, "Get your ass back in the car." § 87(2)(b) moved his hands side to side, with his palms facing up, and shrugged his shoulders as he spoke to PO Mendez.

Three uniformed officers on the opposite side of West 183rd Street approached PO Mendez and § 87(2)(b). PO Edward Gaston of Patrol Borough Bronx, was described as a dark-skinned black male, 6'0", 200 pounds, prescription glasses with oval lenses and black hair. PO1 was described as a white male, black or brown hair, 6'0", 140 to 150 pounds. PO Gustavo Ochoa of Patrol Borough Bronx was described as a white male, red hair, prescription glasses with oval lenses, 5'4" to 5'5", 130 pounds.

§ 87(2)(b) re-entered his vehicle. PO Mendez asked one of the officers to retrieve § 87(2)(b)'s license. § 87(2)(b) gave his license to an officer. PO Gaston then instructed § 87(2)(b) to exit his vehicle and § 87(2)(b) complied. PO Gaston patted § 87(2)(b)'s arms, shoulders, pockets, legs, and ankles.

PO1 searched the driver's side of § 87(2)(b)'s vehicle. PO Ochoa walked around the back of § 87(2)(b)'s vehicle and searched the passenger's side. § 87(2)(b) could not see exactly where PO Ochoa searched. PO Ochoa also searched the wallet of § 87(2)(b)'s girlfriend, § 87(2)(b), which was located in the pocket of the passenger door, and asked who § 87(2)(b) was. At this time, PO Mendez sat inside his vehicle while PO Ramos remained outside of the vehicle. § 87(2)(b) spoke with PO Gaston about the incident. § 87(2)(b) moved his hands side to side, with his palms facing up, and shrugged his shoulders as he spoke to PO Gaston.

Approximately ten minutes later, SGT Adonis Ramirez arrived in a marked van. SGT Ramirez was described as a 60 year old black male, 5'5" to 5'6", 130 pounds with black hair. SGT Ramirez instructed the officers to "take in" § 87(2)(b). When § 87(2)(b) was at the rear of his vehicle, he saw that his license plate light was out. § 87(2)(b) was transported to the 46th Precinct stationhouse. PO Gaston entered § 87(2)(b)'s vehicle to drive it to the stationhouse.

§ 87(2)(b) was later released from the stationhouse with two disorderly conduct summonses. He was not summonsed for the inoperable license plate light.

§ 87(2)(b) did not cooperate with attempts to schedule an appointment to view photos.

NYPD Statements:

Subject Officer: PO MICHAEL MENDEZ

- PO Mendez is a § 87(2)(b) year old Hispanic male who is 5'6", 230 pounds, and has brown hair and brown eyes.
- On September 5, 2013, PO Mendez worked from 7:30 a.m. to 4:05 a.m. the following day and was assigned to a foot post, which covered West 183rd Street and University Avenue and Fordham Road. PO Mendez worked with PO Benedice Ramos. The officers were in uniform.

Memo Book

At 1:00 a.m., PO Mendez wrote that a car stop was conducted for a defective rear license plate light and a summons was issued. At 1:03 a.m., § 87(2)(b) was under arrest. Two disorderly conduct summonses were issued. (encl. 10a-e).

Summonses

PO Mendez issued § 87(2)(b) two disorderly conduct summonses (unreasonable and violent and threatening behavior). The unreasonable noise summons stated that § 87(2)(b) screamed at a high volume and that the "volume was unreasonable which is residential" (encl. 11a). The other summons stated that § 87(2)(b) acted in a violent and threatening manner towards PO Mendez. (encl. 11b). § 87(2)(b) was also issued a summons for a defective rear plate light (encl. 11c-d).

CCRB Statement

PO Mendez was interviewed at the CCRB on January 9, 2014 (encl. 12a-c).

On September 6, 2013, at approximately 1:05 a.m., PO Mendez and PO Ramos approached § 87(2)(b)'s vehicle because the rear license plate light was out. PO Mendez and PO Ramos were on foot. § 87(2)(b) yelled and asked why he had to provide his information. A marked patrol vehicle arrived and parked near the rear of § 87(2)(b)'s vehicle. After instructing § 87(2)(b) to provide his information three times, he provided it, along with his § 87(2)(b) identification.

PO Mendez and PO Ramos turned around and began to walk towards the marked vehicle. PO Ochoa was on a nearby foot post and said, "Mendez. Turn around." When PO Mendez turned around, § 87(2)(b) had exited his vehicle and was approaching PO Mendez. § 87(2)(b) was one to two feet away from PO Mendez when the officers instructed § 87(2)(b) to re-enter his vehicle. PO Mendez believed that the officers who occupied the marked vehicle, whose names he did not have, also instructed § 87(2)(b) to re-enter his vehicle. PO Mendez did not say, "Get your ass back in the car." § 87(2)(b) did not comply and said that he had a right to know why he was stopped. After PO Mendez instructed § 87(2)(b) two times to re-enter his vehicle and he did not comply, § 87(2)(b) was under arrest for disorderly conduct for his non-compliance. SGT Ramirez said "92" to indicate an arrest. § 87(2)(b) was handcuffed. PO Mendez frisked § 87(2)(b). PO Mendez believed that § 87(2)(b) used profanity; however, he did not remember the words that were used.

SGT Ramirez instructed an adjacent foot post officer to drive § 87(2)(b)'s vehicle back to the 46th Precinct stationhouse. PO Mendez did not know who the officer was. That officer looked into the lungeable, grabbable areas of § 87(2)(b)'s vehicle and in the rear of the car for weapons.

§ 87(2)(b) committed disorderly conduct (unreasonable noise) when he yelled at PO Mendez and asked why he was being pulled over and needed to provide his information. At this time, there were no individuals in the area and there was no vehicular traffic. § 87(2)(b) continued to use unreasonable noise throughout the incident. § 87(2)(b) committed disorderly conduct (engaging in fighting or in violent, tumultuous, or threatening behavior) when he exited his vehicle and approached PO Mendez. At this time, there were one to two passersby who may have stopped to witness the incident.

Subject Officer: PO GUSTAVO OCHOA

- *PO Ochoa is a § 87(2)(b) year old Hispanic male who is 5'7", 170 pounds, and has brown hair and brown eyes.*
- *On September 5, 2013, PO Ochoa worked from 7:30 p.m. to 4:05 a.m. the following day and was assigned to Foot Post 51, which covered West 183rd Street and Andrews Avenue. PO Ochoa worked with PO Edward Gaston. The officers were in uniform.*

Memo Book

PO Ochoa did not have any memo book entries regarding the incident (encl. 13a-c).

CCRB Statement

PO Ochoa was interviewed at the CCRB on January 24, 2014 (encl. 14a-b).

§ 87(2)(b) stood at the rear of the vehicle at PO Mendez's instruction. § 87(2)(b) was loud and used profanity. He was aggressive toward PO Mendez. § 87(2)(b) got into PO Mendez's face and stood approximately one foot away from him. PO Ochoa did not recall hearing PO Mendez say "Get your ass back in the car." PO Mendez asked PO Ochoa to search the lungeable areas of § 87(2)(b)'s vehicle. PO Ochoa did not recall PO Mendez telling him why he needed to search the vehicle. There was no time for PO Mendez to explain why PO Ochoa needed to search the vehicle because § 87(2)(b) was yelling. PO Ochoa suspected that § 87(2)(b) was hiding a weapon because he was yelling and using profanity. PO Ochoa searched underneath the front passenger seat and the center console. PO Ochoa searched for approximately two minutes. He believed that another officer also searched § 87(2)(b)'s vehicle; however, he was not sure about this. After § 87(2)(b) was handcuffed and transported to the stationhouse, PO Ochoa resumed his foot patrol.

§ 87(2)(b) committed disorderly conduct (unreasonable noise) when he was loud and using profanity. PO Ochoa did not see any passersby while § 87(2)(b) was being loud; however, vehicles were passing by. § 87(2)(b) committed disorderly conduct (violent and threatening behavior) when he was yelling, using profanity, and got close to PO Mendez. PO Ochoa did not remember if a crowd gathered.

Subject Officer: PO EDWARD GASTON

- *PO Gaston is a § 87(2)(b) year old black male who is 6'0", 230 pounds, and has black hair and brown eyes.*
- *On September 5, 2013, PO Ochoa worked from 7:30 p.m. to 4:05 a.m. the following day and was assigned to Foot Post 53, which covered East 183rd Street and University Avenue. PO*

Gaston worked with PO Edwin Peguero. The officers were in uniform.

Memo Book

PO Gaston's memo book entry is consistent with his testimony. (encl. 17a-b).

CCRB Statement

PO Gaston was interviewed at the CCRB on February 20, 2014 and July 16, 2014 (encl. 18a-19b).

PO Gaston vaguely remembered § 87(2)(b) exiting his vehicle in order to be handcuffed. PO Gaston did not hear PO Mendez say, "Get your ass back in the car." PO Gaston denied frisking § 87(2)(b). PO Gaston drove § 87(2)(b)'s vehicle to the 46th Precinct stationhouse. He did not search § 87(2)(b)'s vehicle and did not remember § 87(2)(b)'s vehicle being searched.

PO Gaston did not recall what prompted the summonses to be issued.

Witness Officer: SGT ADONIS RAMIREZ

- *SGT Ramirez is a § 87(2)(b) year old Hispanic male who is 5'8", 170 pounds, and has black hair and brown eyes.*
- *On September 5, 2013, SGT Ramirez worked from 7:15 p.m. to 4:12 a.m. the following day and was assigned as the Impact Response Team Supervisor. SGT Ramirez worked with PO Michael Mendez and PO Karim Powell. The officers were in uniform and were assigned to a marked van, vehicle number 5370.*

Memo Book

SGT Ramirez noted that one individual was under arrest by PO Gaston (encl. 15a-d).

CCRB Statement

SGT Ramirez was interviewed at the CCRB on January 17, 2014 (encl. 16a-c).

SGT Ramirez, PO Mendez, who was the driver, and PO Powell were on patrol when SGT Ramirez observed PO Gaston conducting a car stop. § 87(2)(b) was loud and non-compliant. § 87(2)(b) put his hands in PO Gaston's face, and yelled at him. PO Gaston instructed § 87(2)(b) to walk to the rear of his vehicle but § 87(2)(b) attempted to reenter his vehicle. SGT Ramirez and PO Mendez exited their vehicle. A crowd of four to five people stopped to watch.

PO Gaston instructed § 87(2)(b) to walk to the rear of his vehicle and § 87(2)(b) said that he wanted to enter his vehicle. § 87(2)(b) said that it was his vehicle and he would not be told what to do with his vehicle. The officers instructed § 87(2)(b) several times to walk to the rear of his vehicle. SGT Ramirez did not recall hearing PO Mendez say "Get your ass back in the car." § 87(2)(b) was arrested for disorderly conduct due to his non-compliance. PO Gaston frisked § 87(2)(b) after he was handcuffed.

SGT Ramirez instructed an officer whom he did not recall to search the grabbable areas of § 87(2)(b)'s vehicle; He did not recall actually seeing that officer search the vehicle. SGT Ramirez thought that § 87(2)(b) was concealing a weapon and possibly drugs because of his eagerness to return to his vehicle. SGT Ramirez thought that § 87(2)(b) had drugs in his vehicle because of his demeanor and non-compliance.

§ 87(2)(b) committed disorderly conduct when he yelled at PO Gaston and refused to walk to the rear of his vehicle. § 87(2)(b)'s eagerness to re-enter his car and putting his hands in PO Gaston's face was violent and threatening behavior.

Subject Officer: PO BENEDICE RAMOS

- PO Ramos is a § 87(2)(b) year old Hispanic female who is 5'4", 150 pounds, and has brown hair and brown eyes.
- On September 5, 2013, PO Ramos worked from 7:30 p.m. to 4:05 a.m. the following day and was assigned to Foot Post 71, which covered Morris Avenue and East 182nd Street to East 184th Street. PO Ramos worked with PO Karim Powell and SGT Adonis Ramirez. The officers were in uniform and were assigned to a marked van, vehicle number 5370.

Memo Book

PO Ramos did not have any memo book entries regarding this incident (encl. 20a-b).

CCRB Interview

PO Ramos was interviewed at the CCRB on January 17, 2014 (encl. 21a-b).

PO Ramos was in the marked vehicle with SGT Ramirez and PO Powell. PO Ramos did not remember seeing PO Ochoa. They saw the lights of PO Mendez and PO Gaston's marked patrol vehicle and decided to assist with the car stop.

PO Ramos approached the passenger's side of § 87(2)(b)'s vehicle. PO Mendez spoke with § 87(2)(b). Although PO Ramos could not hear their conversation, PO Ramos heard § 87(2)(b) yell, "Fuck you" and he moved his hands up and down.

§ 87(2)(b) exited the car and walked to the rear of his vehicle. PO Ramos did not hear an officer instruct § 87(2)(b) to exit his vehicle. PO Ramos did not hear PO Mendez say to § 87(2)(b) "Get your ass back in the car." A group of six or seven young individuals stopped when § 87(2)(b) was at the rear of his vehicle.

PO Mendez frisked § 87(2)(b) however, PO Ramos did not see where PO Mendez placed his hands. § 87(2)(b) said that he was § 87(2)(b) and asked, "What the fuck are you doing?" § 87(2)(b) also asked why he was being stopped and said that he was going to work. PO Mendez handcuffed § 87(2)(b) because he was under arrest for disorderly conduct. PO Gaston and PO Mendez may have searched § 87(2)(b)'s vehicle; however, PO Ramos was not sure of this. PO Ramos did not know if PO Gaston and PO Mendez were instructed to search the vehicle.

§ 87(2)(b) committed disorderly conduct (unreasonable noise) when he was yelling while still in the car. PO Ramos did not know why the summons for violent and threatening behavior was issued.

Witness Officers: PO KARIM POWELL, PO TAREK KHAMIS, PO CHRISTOPHER KNITTER, PO ROGER KELLY, PO JOSEPH SPINA, PO JAMES CONN, PO EDWIN PEGUERO, PO JOHN GALBO, PO FREDERY ALVAREZ, and PO HASHEM AWAD

- (For pedigree, assignment, and memo book entries, see encl. 22a-23b, 26a-27b, 24a-25b,

28a-29b, 30a-31b, 32a-33b, 34a-35b, 36a-37b, 38a-39b and 40a-41b).

Neither PO Powell nor PO Khamis were present for this incident. The remaining officers did not recall this incident and did not have memo book entries regarding the incident.

MOS Employment Status

PO Anthony Tortora resigned from the New York City Police Department (NYPD) on January 8, 2014 (encl. 49e).

NYPD Documents

Command Log

According to the command log, § 87(2)(b) was brought to the stationhouse at 1:01 a.m. and was released with summons number § 87(2)(b) at 2:00 a.m. (encl. 43a).

Roll Call

According to the Bronx Impact Response Team (IRT) roll call, PO Knitter and PO Khamis worked in the vicinity of the incident location. The roll call also identified six additional white male officers: PO James Conn, PO John Galbo, PO Hashem Awad, PO Joseph Spina, PO Roger Kelly, and PO Anthony Tortora (encl. 44a-d).

Summonses for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b)

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of January 14, 2014 with regard to the incident (encl. 45a).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 6a).

Subject Officers CCRB History

- PO Mendez, PO Ochoa, PO Gaston and PO Ramos have all been members of the service for two years and there are no substantiated CCRB allegations against them (encl. 3a -5b). This is the first and only CCRB complaint for PO Gaston and PO Ramos.

Conclusion

Identification of Subject Officers

PO Mendez, PO Ochoa, and PO Gaston acknowledged interacting with § 87(2)(b)

§ 87(2)(b) stated that a second officer, who was described as a white male, 6'0, 140 to 150

pounds, with black or brown hair, searched his vehicle. The roll call listed PO Khamis and PO Knitter as working in the vicinity of the incident location. However, PO Khamis' tour started approximately seven hours after the incident time and PO Knitter did not recall the incident and his memo book did not place him there. PO Peguero, who PO Gaston had as his partner in his memo book, did not recall this incident and listed PO James Conn as being his partner in his memo book; PO Peguero had no memo book entries regarding this incident. The roll call listed six white males who worked on the date of the incident: PO James Conn, PO John Galbo, PO Hashem Awad, PO Joseph Spina, PO Roger Kelly, and PO Anthony Tortora. PO Tortora resigned from the NYPD on January 8, 2014. The remaining officers did not recall this incident and their memo book entries did not place them at the incident. § 87(2)(b) was uncooperative with viewing photos of possible subject officers. § 87(2)(g)

Allegation Not Pleaded

Although Sgt. Ramirez stated that he was present for the vehicle search and authorized it, § 87(2)(b) and PO Ochoa were consistent that Sgt. Ramirez arrived at the scene after the vehicle search concluded and neither authorized it nor participated in the search. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A- Discourtesy: PO Michael Mendez spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that PO Mendez said, "Get your ass back in the car." PO Mendez denied making that statement. PO Ochoa did not recall PO Mendez making that statement. PO Ramos and PO Gaston did not hear PO Mendez make that statement. § 87(2)(g)

Allegation B- Abuse of Authority: PO Gustavo Ochoa searched the car in which § 87(2)(b) **was an occupant.**

It is undisputed that PO Ochoa searched § 87(2)(b)'s vehicle.

§ 87(2)(b) stated that PO Ochoa searched the passenger's side of his vehicle; PO Ochoa stated that PO Mendez asked him to search the lungeable areas of § 87(2)(b)'s vehicle. PO Ochoa did not recall PO Mendez telling him why he needed to search the vehicle. There was no time for PO Mendez to explain why because § 87(2)(b) was yelling. PO Ochoa suspected that § 87(2)(b) was hiding a weapon because he was yelling and using profanity. PO Ochoa searched underneath the front passenger seat and the center console.

An officer may search a vehicle if he has probable cause to believe that the vehicle contains contraband or evidence of a crime. *People v. Washington*, 108 A.D.3d 578 (App. Div. 2nd Dep't. 2013) (encl. 1a-b). During the course of a vehicle stop, the police may conduct a limited search of a vehicle if there is a substantial likelihood that a weapon is located within the vehicle which presents an actual and specific threat to the officer's safety. *People v. Baksh*, 2014 N.Y. App. Div. LEXIS 112 (App. Div. 2nd Dep't. 2014) (encl. 2a-c).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C- Abuse of Authority: An officer searched the car in which § 87(2)(b) was an occupant.

§ 87(2)(g)

Allegation D- Abuse of Authority PO Edward Gaston frisked § 87(2)(b)

§ 87(2)(b) stated that he was frisked by PO Gaston. PO Gaston did not recall many details about the incident and denied frisking § 87(2)(b) § 87(2)(g)

Allegation E – Abuse of Authority: PO Michael Mendez issued summonses to § 87(2)(b)

PO Mendez issued § 87(2)(b) disorderly conduct summonses for unreasonable noise and engaging in violent and threatening behavior.

§ 87(2)(b) stated that he exited his vehicle when he was told that his license plate light was out to inspect it. He stood approximately three to four feet away from PO Mendez. PO Mendez told him to back up. § 87(2)(b) responded that he wanted to see what PO Mendez was referring to regarding the inoperable license plate light. § 87(2)(b) was instructed to re-enter his vehicle two more times before he complied.

PO Mendez stated that § 87(2)(b) was initially uncooperative and created unreasonable noise by yelling and refusing to provide his identification. When § 87(2)(b) exited his vehicle, he stood one to two feet away from PO Mendez which PO Mendez considered to be threatening behavior. § 87(2)(b) was under arrest after he failed to comply with instructions to return to his vehicle. One or two passersby may have stopped to watch.

A person only commits disorderly conduct if he or she demonstrates an intent to cause public inconvenience or alarm, or recklessly creates a risk thereof. The circumstances must support an inference that the defendant possessed the requisite intent. NYS Penal law § 240.20 (1)(2)(encl. 2i). The disorderly conduct statute applies to situations which carry beyond individual disputants and becomes a public concern. “The mere expression that one feels aggrieved by the police – even when uttered in a loud voice – cannot constitute an offense.” People v. Square, 20 Misc.3d 1126(A) (Crim. Ct. NY Cty., 2008) (encl. 2j-o).

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted]

§ 87(4-b), § 87(2)(g) [Redacted]
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Team: One

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date